

25VECV04778 25VECV04778

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-24

Motion: MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

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Case Number: 25VECV04778 Hearing Date: August 24, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

PATRICIO ANTHONY

FUENTES,

Plaintiff,

vs.

PAWPARRAZZI DOGS, LLC, a

corporation; GISELLE'S LEGACY, a non

profit corporation; KRISTA CASTRO, an

individual; SHERRIE CALDERON, and

individual; LOVINJEET SINGH, an

individual; and DOES 1 to 50, inclusive,

Defendants.

CASE NO: 25VECV04778

[TENTATIVE]

ORDER RE:

MOTION

TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

Dept. W

8:30 a.m.

August 24, 2026

NO PROOF OF SERVICE

[TENTATIVE] ORDER: The Court

CONTINUES this motion to October 12, 2026, so that Moving Defendant can properly serve this motion.

Background

This is a dog bite personal injury case. On August 26, 2023, Plaintiff Patricio Fuentes was allegedly attacked by a dog named Koda while walking in Warner Park.

At the time of the incident, Koda was being walked by Moving Defendant Lovinjeet Singh. Ms. Singh is an employee of BAW Foundation Capone's Coalition Inc., a dog rescue foundation. Ms. Singh was recruited as a volunteer dog walker by Defendant Giselle's Legacy via a social media ad. Ms. Singh was allowed to check Koda out of Defendant Pawparazzi Dogs, LLC, and take him for a walk – which is when the alleged incident occurred.

On August 22, 2025, Plaintiff brought suit against defendants Sherrie Calderon, Giselle's Legacy, Krista Castro, Pawparazzi Dogs, LLC, as well as Moving Defendant Lovinjeet Singh. Plaintiff alleges two causes of action against all defendants: 1) negligence and 2) strict liability under CIV § 3342.

On March 13, 2026, default was entered against Moving Defendant Lovinjeet Singh

Now, Moving Defendant moves to have this default judgment set aside.

Discussion

i)

Legal Merits

Moving Defendant moves this Court to set aside the March 13, 2026, default judgment, pursuant to CCP § 473.5 and § 473(d). (Mot. to Set Aside, pp. 1-2.) Moving Defendant asserts that she did not receive actual notice of this lawsuit. (Ibid.)

A default judgment can be set aside under CCP § 473.5 if: 1) the motion is timely – meaning it was filed and served within the earlier of two years after entry of a default judgment, or six months after service of the default judgment – and 2) the court determines that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. (CCP § 473.5(a),(c).)

a) Timeliness

Here, Moving Defendant's motion is timely. Default was entered on March 13, 2026. Moving Defendant brought this Motion to Set Aside on May 28, 2026, just over three months later. Thus, this motion is timely under either prong of CCP § 473.5(a).

b) Lack of Notice

Additionally, Moving Defendant provides evidence that their failure to appear in this case was due to lack of notice. Specifically, Moving Defendant provides a sworn declaration, stating that, "I first became aware of this lawsuit on or about May 27, 2026, when I received notice regarding a request for entry of default and related communications." (Singh Decl. ¶ 4.) Moving Defendant also states that, "the alleged service was made to a P.O. Box address and not by personal service my residence or place of business, and I did not sign any acknowledgment of service." (Id. ¶ 6.) Finally, Moving Defendant states that, "I did not avoid service and was not attempting to evade notice of this lawsuit." (Id. ¶ 7.) Notably, this Court is aware of a parallel case in this department based on these same facts. (See 24VECV04071.) Moving Defendant is

also a defendant in that case, where she has both appeared and submitted filings. (See, 24VECV04071, Answer, 10/17/25.) Thus, The Court is convinced that Moving Defendant was not properly served, and is not evading service.

For these reasons, the Court finds that Moving Defendant's lack of notice was not due to intentional evasion of service or inexcusable neglect.

ii)

Lack of Proof of Service

However, despite the fact that Moving Defendant's motion is meretricious, the Court must deny or continue this motion to a later date.

Under CCP § 1005(a), "written notice shall be given . . . for the following motions . . . Motion to Set Aside Default or Default Judgment and for Leave to Defend Actions pursuant to Section 473.5." (CCP § 1005(a)(10).) Here, Moving Defendant submits no proof that this motion to set aside default was served upon Plaintiff. Thus, the motion is procedurally improper. For this reason, the Court CONTINUES this motion to October 12, 2026. Moving Defendant is ordered to serve Plaintiff, and to file proof of this service with the Court.

Conclusion

The Court CONTINUES this motion to October 12, 2026, so that Moving Defendant can properly serve this motion.

IT

IS SO ORDERED, Moving Defendant TO GIVE NOTICE.

August 24, 2026

Judge of the Superior Court